

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,
Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.
Respondents & Third-Party Complainants

v.

SAMSUNG ELECTRONICS COMPANY, LTD.,
Third-Party Respondent.

JOINT STATUS REPORT 3 (SEPTEMBER 2025)

Pursuant to 46 C.F.R. §502.141(h), and the July 1, 2025 Scheduling Order (“Order”), Samsung Electronics America, Inc., (“Complainant” or “SEA”), and Orient Overseas Container Line Limited, and OOCL (Europe) Limited (collectively, “Respondents” or “OOCL”), (collectively the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report.

As directed by the Order, the Parties each report on their respective discovery processes:

Claimant, Samsung Electronics America, Inc.

1. Discovery:

SEA received OOCL's interrogatories and initial production responses in the past week and SEA's eDiscovery vendor is currently processing and analyzing the data. OOCL's interrogatory responses, much like SEA's responses, rely heavily on document production and as a result, only once the data has been processed will Counsel for SEA be able to thoroughly review the documents and data that have been produced in order to assess whether the production is fully responsive to the requests. Thus, SEA is not presently able to assess if production by OOCL is complete.

SEA has not yet produced documents to OOCL. Since the initiation of the discovery period, SEA has been working tirelessly to focus in on the specific containers, specific time periods of charges, and specific issues affecting each and every container; alongside the specific interrogatories and document production requests made by OOCL.

The volume of SEA data initially captured, as reported in the parties' August Joint Status Report, began at approximately 5 terabytes (TB) of documents and data. The parties, prior to their initial Joint Status Report, discussed the importance of avoiding large document dumps where possible. As a result, SEA is still in the process of reducing and indexing the relevant data to provide the requested documentation to OOCL in response to its interrogatories and document requests. That process is active and ongoing and SEA is preparing to commence its production shortly.

As identified in SEA's Amended Complaint, there are approximately \$12.5 million in demurrage, detention and associated charges at issue in this matter. Those charges are in connection with what currently appears to be 2,012 containers. SEA and its counsel have been

working to review the transportation of each of those 2,012 containers and their associated charges and the relevant correspondence to assess the cause of delay, as required by a container-by-container analysis, to provide the comprehensive documentation requested by OOCL. In addition, SEA's Amended Complaint seeks approximately \$1.8 million in additional related costs and lost revenues incurred due to OOCL's actions at issue.

SEA is also finalizing its requests for admissions and a proposed list of stipulations to narrow the focus of the litigation, as well as the legal and factual points of contention.

The volume of data necessary to prove the unjust and unreasonable nature of the over 4,438 charges at issue and separating out the relevant containers and their associated charges is the primary challenge in reviewing and producing responsive documents and information. SEA anticipates that it will require additional time for its review and production and proposes a six-week extension to Scheduling Order. SEA respectfully reiterates the concerns expressed in the June 26, 2025 Joint Status Report (Doc. 60, "JSR1") that requiring the completion of discovery within the 150-day standard noted in the FMC Rules does not provide a realistic timeline for a case such as this, in light of the work which the Parties must complete and the complex nature of the present matter.

2. Mediation

SEA continues to believe that mediation or a settlement judge could be useful in resolving this matter or at least narrowing the issues in light of the core disagreement over the operation and interplay between carrier haulage, store-door delivery, and customer nominated trucking. SEA remains amenable to an order that the parties attend a conference for the settlement or simplification of the issues pursuant to Rules 502.25(b)(2), 502.411(b), and 5 U.S.C. § 556(c)(8). Alternatively, SEA proposes that the Presiding Officer appoint a settlement

judge pursuant to Rule 502.75(f) in an effort to reach a resolution of this matter in a more efficient manner.

3. OOCL's Counterclaim

SEA anticipates filing its Motion to Dismiss OOCL's Amended Counterclaim in accordance with the September 8th deadline.

Respondents, Orient Overseas Container Line Limited and OOCL (Europe) Limited

Respondents timely responded to Complainant's Initial Discovery Requests on August 25, 2025. Respondent have thus far produced 14,996 pages of responsive documents. Respondents will continue to produce documents on a rolling basis. OOCL anticipates completing the production of documents as required in the procedural schedule by September 30, 2025.

OOCL served initial Requests for Discovery on July 2, 2025, and SEA served its responses on August 1, 2025. Despite having several years to collect and review documents both prior to and months after the filing of the Complaint, however, SEA has not produced a single document to OOCL to date.

As instructed by the Presiding Officer, OOCL held a preliminary mediation conference with the FMC's Office of Consumer Affairs and Dispute Resolution Services (CADRS) on August 7, 2025. OOCL opposes the appointment of a settlement judge/mediator at this point in time. As stated in the last joint status report, there has been no meaningful exchange of information at this time and a proposal by SEA to mediate appears to be nothing more than an attempt at delay and/or an attempt to pressure OOCL into a settlement. Moreover, the parties are in the process of arranging a direct conversation between a representative of each of them, without counsel present, to see if the matter can be resolved. In light of that effort, OOCL is unable to understand SEA's continued pursuit of an avenue that OOCL has rejected and continues to reject.

OOCL also objects to the inclusion of any mention of a potential revision to the scheduling order in this joint status report. If SEA's suggestion constitutes a motion, it should be filed as such. It is not appropriate to include it in a status report. Moreover, if it is a motion, it is a non-dispositive motion and SEA has not conferred with OOCL regarding the motion as required by FMC regulations.

OOCL has diligently complied with the discovery schedule as set forth in the previous Order and has expended much time, effort, and expense in order to produce a large number of relevant documents, whereas SEA has made none. Moreover, OOCL sees no need to amend the existing scheduling order at this time. If SEA wishes to meet and confer regarding a proposed motion seeking changes to the existing scheduling order, OOCL will consider any such proposals in good faith. However, at this time, SEA's suggestion of an extension appears to OOCL to be nothing more than a delay tactic on the part of SEA that should be disregarded by the Presiding Officer unless and until the issue is properly raised by one or both of the parties.

Dated: September 2, 2025

MILLS BLACK LLP

By: /s/ **Peter F. Black**

Peter F. Black
H. Allen Black
Imran O. Shaukat
1215 19th Street NW,
Washington, D.C. 20036
Telephone: (202) 987-4100
Email: pblack@millsblack.com
Email: hallenblack@millsblack.com
Email: ishaukat@millsblack.com

*Counsel to Complainant, Samsung
Electronics America, Inc.*

COZEN O'CONNOR, P.C.

By: /s/ **Christopher Raleigh**

Wayne R. Rohde
Christopher Raleigh
Kathryn Sobotta
Rachel Schwartz
2001 M Street Northwest, Floor 5
Washington, DC 20036
Telephone: 202-463-2507
Facsimile: 202-640-5912
Email: wrohde@cozen.com
Email: craleigh@cozen.com
Email: ksobotta@cozen.com

Respectfully Submitted,

Email: rschwartz@cozen.com

*Counsel to Respondents, Orient Overseas
Container Line Limited and OOCL (Europe)
Limited*

**JEFFREY/FENNEMAN LAW +
STRATEGY, PLLC**

By: /s/ **Rebecca A. Fenneman**

Eric C. Jeffrey
Rebecca A. Fenneman
Kaya C. Massey
Nicholas L. Webb
700 12th Street, NW Suite 700
Washington, DC 20005
Email: EJeffrey@JeffreyFenneman.com
Email: RFenneman@JeffreyFenneman.com
Email: KMassey@JeffreyFenneman.com
Email: NWebb@JeffreyFenneman.com

*Counsel to Respondents, Orient Overseas
Container Line Limited and OOCL (Europe)
Limited*

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

1. Office of the Secretary
Federal Maritime Commission
secretary@fmc.gov
2. Hon. Richard Ambrow - *Administrative Law Judge*
Federal Maritime Commission
Judges@fmc.gov
3. JEFFREY/FENNEMAN LAW + STRATEGY, PLLC
Counsel for Respondents
 - a. Rebecca A. Fenneman
RFenneman@JeffreyFenneman.com
 - b. Eric C. Jeffrey
EJeffrey@JeffreyFenneman.com
 - c. Kaya C. Massey
KMassey@JeffreyFenneman.com
 - d. Nicholas L. Webb
NWebb@JeffreyFenneman.com
4. Mills Black LLP
Counsel for Complainant
 - a. Allen Black
hallenblack@millsblack.com
 - b. Peter F. Black
pblack@millsblack.com
 - c. Imran O. Shaukat
ishaukat@millsblack.com
5. Hohenstein & Parkinson, LLP
Specially Appearing Counsel for Third-Party Respondent
 - a. James H. Hohenstein
jim.hohenstein@hplawnyc.com

Dated: September 2, 2025

By: /s/ Peter F. Black